

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

DARRYL HALIFAX and TATYANA GUERRA,

Plaintiffs,

-against-

THE CITY OF NEW YORK and JAN FOLVARKSY,

Defendants.

Index No.:

SUMMONS

Plaintiff designates Richmond County as the place of Trial, as same is the location of occurrence of the acts complained of herein

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 5, 2019

RHEINGOLD GIUFFRA RUFFO & PLOTKIN LLP
Attorneys for Plaintiffs
DARRYL HALIFAX and TATYANA GUERRA



By: Jeremy A. Hellman, Esq.
551 Fifth Avenue, 29th Floor
New York, NY 10176
Tel: (212) 684-1880
Fax: (212) 689-8156
jhellman@rheingoldlaw.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

DARRYL HALIFAX and TATYANA GUERRA,

Plaintiffs,

-against-

THE CITY OF NEW YORK and JAN FOLVARKSY,

Defendants.

Index No.:

VERIFIED COMPLAINT

Plaintiffs DARRYL HALIFAX and TATYANA GUERRA, by Plaintiff's attorneys, Rheingold Giuffra Ruffo & Plotkin LLP, as and for Plaintiffs' Verified Complaint against the defendants herein, respectfully sets forth and alleges the following, upon information and belief:

CONDITIONS PRECEDENT

1. That on August 8, 2019, plaintiff served a Notice of Claim, in writing, upon defendant THE CITY OF NEW YORK.
2. That on September 6, 2019, plaintiff served a Supplemental Notice of Claim, in writing, upon defendant THE CITY OF NEW YORK.
3. That pursuant to the Order/Decision of the Honorable Thomas P. Alliota, J.S.C. of the Supreme Court of the State of New York, County of Richmond, of November 6, 2019, the aforesaid Notice of Claim and Supplemental Notice of Claim were deemed timely served nunc pro tunc.
4. That plaintiffs duly presented and served upon defendant, THE CITY OF NEW YORK, his Notice of Claim and Demand for Adjustment of Damages, by serving and filing same upon defendant THE CITY OF NEW YORK, within ninety days (90) after the accrual of Plaintiff's claim pursuant to the statutes in such cases made and provided (or as ordered that same were considered served in said time frame, per the aforesaid decision/order of the Court).

5. That although more than thirty (30) days have elapsed since the presentation and service of said Notices of Claim and Demands for Adjustment, Defendant THE CITY OF NEW YORK has failed to make any adjustment and/or payment of said claim and has failed, neglected and refused to pay, settle, compromise or adjust the claims of the plaintiff herein.

6. That a hearing pursuant to General Municipal Law Section 50-h of Plaintiffs was held on October 11, 2019.

7. That no physical examination of plaintiffs was demanded to date.

8. That this action is commenced within one year and 90 days of the date of accrual of Plaintiffs claim.

9. That Plaintiff has complied with the provisions of General Municipal Law §50.

10. That Plaintiff has fulfilled all necessary conditions precedent necessary to file this lawsuit.

PARTIES

11. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

12. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, was and still is a public authority, duly organized and existing under and by virtue of the laws of the State of New York.

13. That at all times hereinafter mentioned, the Police Department of the City of New York was and still is an agency of defendant THE CITY OF NEW YORK.

14. That on October 23, 2018, Defendant JAN FOLVARSKY, was an employee of the CITY OF NEW YORK.

15. That on October 23, 2018, Defendant JAN FOLVARSKY, was a member of the New York City Police Department, whose Shield number was 6071.

16. That on October 23, 2018, Defendant JAN FOLVARSKY, was an employee of THE CITY OF NEW YORK, acting within the scope of his employment for the CITY OF NEW YORK.

17. That on October 23, 2018, Defendant JAN FOLVARSKY, was an employee of the CITY OF NEW YORK, acting in furtherance of his employment with THE CITY OF NEW YORK.

18. That on October 23, 2018, Defendant JAN FOLVARSKY, was a member of the New York City Police Department, in its 120th Precinct, in Staten Island, New York.

19. That on November 13, 2018, Defendant JAN FOLVARSKY, was a member of the New York City Police Department, Shield number 6071.

20. That on November 13, 2018, hereinafter mentioned, Defendant JAN FOLVARSKY, was an employee of THE CITY OF NEW YORK, acting within the scope of his employment for the CITY OF NEW YORK.

21. That on November 13, 2018, Defendant JAN FOLVARSKY, was an employee of THE CITY OF NEW YORK, acting in furtherance of his employment with THE CITY OF NEW YORK.

22. That on November 13, 2018, Defendant JAN FOLVARSKY, was a member of the New York City Police Department, in its 120th Precinct, in Staten Island, New York.

23. That between October 23, 2018 and July 29, 2019, Defendant JAN FOLVARSKY, was an employee of THE CITY OF NEW YORK.

24. That between October 23, 2018 and July 29, 2019, Defendant JAN FOLVARSKY, was an employee of the New York City Police Department, acting within the scope of his employment for the New York City Police Department.

25. That between October 23, 2018 and July 29, 2019, Defendant JAN FOLVARSKY, was an employee of the New York City Police Department, acting in furtherance of his employment with the New York City Police Department.

26. That between October 23, 2018 and July 29, 2019, Defendant JAN FOLVARSKY, was an employee of the New York City Police Department, in its 120th Precinct, in Staten Island, New York.

27. That on November 11, 2018, Defendant JAN FOLVARSKY, was an employee of the New York City Police Department, in its 120th Precinct, in Staten Island, New York.

28. That on November 11, 2018, Defendant JAN FOLVARSKY, was an employee of the New York City Police Department.

THE ARREST

29. On October 23, 2018, Darryl Halifax was arrested inside a store at 514 Targee Street, Staten Island, New York 10304.

30. Mr. Halifax walked into the store, and within seconds, was arrested by an NYPD officer.

31. Mr. Halifax walked into the store, and within seconds, was arrested by Defendant JAN FOLVARSKY.

32. That Jan Folvarsky was the arresting officer of Darryl Halifax on October 23, 2018.

33. That on October 23, 2018, Mr. Halifax did not commit a crime at or around the aforesaid store.

34. That on October 23, 2018, Mr. Halifax was arrested without probable cause.

35. That on October 23, 2018, Darryl Halifax was forcefully detained under police custody, until he was processed and received a Desk Appearance Ticket.

36. That Darryl Halifax then attended eight court conferences, until the charges were dropped and a certificate of disposition was issued on July 29, 2019.

37. That Darryl Halifax should not have been arrested on October 23, 2018.

38. That Darryl Halifax was arrested because an employee of THE CITY OF NEW YORK fabricated that Darryl Halifax committed a crime.

39. That Darryl Halifax was arrested because a member of the New York City Police Department fabricated that Darryl Halifax committed a crime.

40. That Darryl Halifax was arrested because JAN FOLVARSKY fabricated that Darryl Halifax committed a crime.

41. That JAN FOLVARSKY knowingly fabricated that Darryl Halifax committed a crime.

42. That JAN FOLVARSKY knowingly fabricated that Darryl Halifax committed criminal act or acts that he did not commit.

43. That JAN FOLVARSKY swore that Darryl Halifax committed criminal act or acts that he did not commit.

44. That JAN FOLVARSKY falsely swore that Darryl Halifax committed criminal act or acts that he did not commit.

45. That JAN FOLVARSKY knowingly fabricated that Darryl Halifax committed a crime within the scope of his employment for defendant THE CITY OF NEW YORK.

46. That JAN FOLVARSKY knowingly fabricated that Darryl Halifax committed a crime in furtherance of his employment for defendant THE CITY OF NEW YORK.

47. That JAN FOLVARSKY falsely stated that Darryl Halifax committed a crime.

48. That JAN FOLVARSKY falsely stated that Darryl Halifax committed a crime within the scope of his employment for defendant THE CITY OF NEW YORK.

49. That JAN FOLVARSKY falsely stated that Darryl Halifax committed a crime in furtherance of his employment for defendant THE CITY OF NEW YORK.

50. That JAN FOLVARSKY falsely stated that Darryl Halifax committed criminals act or acts that he did not commit.

51. That JAN FOLVARSKY falsely stated that Darryl Halifax committed criminals act or acts that he did not commit within the scope of his employment for defendant THE CITY OF NEW YORK.

52. That JAN FOLVARSKY falsely stated that Darryl Halifax committed criminals act or acts that he did not commit in furtherance of his employment for defendant THE CITY OF NEW YORK.

53. That JAN FOLVARSKY stated that Darryl Halifax committed a crime.

54. That JAN FOLVARSKY signed an affidavit that Darryl Halifax committed a crime.

55. That JAN FOLVARSKY signed an affidavit that Darryl Halifax committed a crime within the scope of his employment for defendant THE CITY OF NEW YORK.

56. That JAN FOLVARSKY signed an affidavit that Darryl Halifax committed a crime in furtherance of his employment for defendant THE CITY OF NEW YORK.

57. That Darryl Halifax was then prosecuted based on false statements made by an employee of THE CITY OF NEW YORK.

58. That Darryl Halifax was then prosecuted based on false statements made by a member of the New York City Police Department.

59. That Darryl Halifax was then prosecuted based on false statement(s) made by JAN FOLVARSKY.

60. That at no time on October 23, 2018, did Darryl Halifax obstruct justice.

61. That Detective Jan Folvasky, shield # 6071 signed an affidavit which contains materially false information, and was the basis for Mr. Halifax being arrested and prosecuted.

62. That Mr. Halifax never prevented any officer from entering the premises, and did not warn anyone as indicated in Detective Jan Folvasky's affidavit.

63. That Detective Jan Folvasky's statements in the aforesaid affidavit were known to be false by him and by the NYPD, or in the exercise of any diligence would have easily been known to be false by same, and were initially made with malice in an attempt to falsely arrest Mr. Halifax and maliciously prosecute him for offenses the NYPD knew he did not commit.

64. That the aforesaid false statements were known to be false at the time that they were made.

65. That the aforesaid false statements could have been easily been found to be false had Defendants done their due diligence into investigating this matter.

66. That had such due diligence been performed, plaintiff would not have been arrested.

67. That had such due diligence been performed, plaintiff would not have been prosecuted.

68. That the foregoing was caused by the recklessness, carelessness, negligence and wrongful intentional conduct of Defendants, their agents, servants and/or employees, including various Police Officers from the 120th Precinct (and/or other precincts); in unjustly and wrongfully arresting and detaining the plaintiff; in exhibiting a depraved indifference to Plaintiff's life, health, safety, welfare and well-being; in engaging in activities that were dangerous and harmful to the Plaintiffs; in wrongfully restraining and imprisoning the Plaintiff without probable cause, a

warrant, justification and/or legal basis to do so which was evidenced by the fact that all charges against the plaintiff were dismissed, and as evidence clearly shows; in failing to follow proper police department guidelines, rules and regulations; in violating the applicable rules in the Patrol Guide Book; in violating Plaintiffs' civil; in failing to perform sufficient and adequate investigation so as to clear plaintiff's name and dismiss the charges against him in a speedy manner; in improperly detaining and incarcerating the plaintiff for an excessive amount of time; in failing to avoid and/or prevent the occurrence herein; in failing to supervise, properly supervise and adequately supervise the aforesaid Police Officers and/or other personnel involved in this incident; in failing to provide sufficient and adequate training to the Police Officers involved herein; in violating the applicable laws, rules, statutes, ordinances and regulations in such cases made and provided; and they were otherwise careless, reckless and negligent and failed to exercise reasonable care and prudence under the circumstances.

69. That as a result of said failures, malice, malfeasance and false statements, Darryl Halifax was injured.

70. That as a result of said failures, malice, malfeasance and false statements, Mr. Halifax was detained/arrested for approximately 12 hours in police custody, between October 23, 2018, at approximately 2:50 P.M. and October 24, 2018 at approximately 3:00 A.M.; Mr. Halifax was further required to attend 8 court conferences; Mr. Halifax's probationary period with the New York City Department of Sanitation was extended for three months; Mr. Halifax underwent significant psychological trauma and emotional distress as a result of his unlawful arrest as Mr. Halifax was out of jail on probation at the time of the occurrence, and the charges he was facing in this incident would have constituted a violation of his probation. As a result, Mr. Halifax was facing wrongfully facing an additional five (5) years of imprisonment if the unlawful charges

against him would have been proven; Mr. Halifax was employed by the New York City Department of Sanitation as a probationary worker and risked losing his job as a result of the charges. Mr. Halifax even risked losing his job just by attending the 8 court appearances that he was required to attend; The subject prosecution threatened to cause Mr. Halifax to lose his ability to ever succeed as a result of being penalized despite his good behavior, and to set him back significantly despite working hard to be a law abiding citizen; Plaintiffs Darryl Halifax and Tatyana Guerra sustained: personal injuries; pain and suffering; embarrassment; deflation of character; psychological trauma; loss of enjoyment of life; loss of freedom; lost earnings; loss of money paid in attorneys' fees in the underlying criminal action; emotional distress; irretrievable loss of reputation; attorneys fees in bringing the instant action; fear of personal injury; fear for personal safety; depression, anxiety and worry; fear and worry regarding impending prosecution, litigation and incarceration; Plaintiffs Darryl Halifax and Tatyana Guerra have sustained and will continue to suffer from psychological trauma, loss of enjoyment of life, plaintiff has incurred loss of earnings; loss of services, loss of consortium, plaintiffs have incurred property damage, the amount of which is presently unknown, plaintiff suffered a violation of his civil rights and false restraint and imprisonment, all to his damage in such sums as a jury finds reasonable, fair and just.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
MALICIOUS PROSECUTION**

71. Plaintiff repeats, reiterates and realleges each and every allegation contained and set forth above, numbered 1-70, with the same force and effect as though more fully set forth at length herein.

72. Evidence clearly exonerates Mr. Halifax, and the failure to drop all charges immediately, but especially once evidence was (or should have been) reviewed, is evidence of defendants THE CITY OF NEW YORK and JAN FOLVARKSY's malice and malicious prosecution.

73. That Defendant THE CITY OF NEW YORK deviated egregiously from statutory requirements and accepted practices in criminal matters and investigations.

74. That Defendant THE CITY OF NEW YORK acted in bad faith in the prosecution of Plaintiff.

75. That Defendant THE CITY OF NEW YORK did not have probable cause to believe that the plaintiff was guilty of a crime.

76. That Defendant THE CITY OF NEW YORK initiated a prosecution against the Plaintiff.

77. That in initiating the prosecution, Defendant THE CITY OF NEW YORK acted maliciously.

78. That Defendant THE CITY OF NEW YORK bore malice against the Plaintiff.

79. That a reasonably prudent person would not have believed that the plaintiff was guilty of the crime charged on the basis of the facts known to Defendant THE CITY OF NEW YORK at the time the prosecution was initiated.

80. That a reasonably prudent person would not have believed that the plaintiff was guilty of the crime charged on the basis of the facts that should have been known to the defendant at the time the prosecution was initiated, or that would have been known had Defendant THE CITY OF NEW YORK followed proper procedures and requirements required of Defendants by law.

81. That it was not reasonable for Defendant THE CITY OF NEW YORK to have believed that Plaintiff was guilty of any crime.

82. That there is evidence establishing that Defendant THE CITY OF NEW YORK did not make a complete and full statement of facts, that they have misrepresented or falsified evidence, that they have withheld evidence and otherwise acted in bad faith.

83. The conduct of Defendant THE CITY OF NEW YORK deviated so egregiously from acceptable police activity as to demonstrate an intentional or reckless disregard for proper procedures

84. Defendant THE CITY OF NEW YORK failed to make further inquiry when a reasonable person would have done so.

85. That Defendant JAN FOLVARKSY deviated egregiously from statutory requirements and accepted practices in criminal matters and investigations.

86. That Defendant JAN FOLVARKSY acted in bad faith in the prosecution of Plaintiff.

87. That Defendant JAN FOLVARKSY did not have probable cause to believe that the plaintiff was guilty of a crime.

88. That Defendant JAN FOLVARKSY initiated a prosecution against the Plaintiff.

89. That in initiating the prosecution, Defendant JAN FOLVARKSY acted maliciously.

90. That Defendant JAN FOLVARKSY bore malice against the Plaintiff.

91. That a reasonably prudent person would not have believed that the plaintiff was guilty of the crime charged on the basis of the facts known to Defendant JAN FOLVARKSY at the time the prosecution was initiated.

92. That a reasonably prudent person would not have believed that the plaintiff was guilty of the crime charged on the basis of the facts that should have been known to the defendant at the time the prosecution was initiated, or that would have been known had Defendant JAN FOLVARKSY followed proper procedures and requirements required of Defendants by law.

93. That it was not reasonable for Defendant JAN FOLVARKSY to have believed that Plaintiff was guilty of any crime.

94. That there is evidence establishing that Defendant JAN FOLVARKSY did not make a complete and full statement of facts, that they have misrepresented or falsified evidence, that they have withheld evidence and otherwise acted in bad faith.

95. The conduct of Defendant JAN FOLVARKSY deviated so egregiously from acceptable police activity as to demonstrate an intentional or reckless disregard for proper procedures

96. Defendant JAN FOLVARKSY failed to make further inquiry when a reasonable person would have done so.

97. The Defendants' actions set forth above were undertaken due to policies maintained by Defendant THE CITY OF NEW YORK.

98. That the underlying criminal matter was terminated in favor of the Plaintiff.

99. That all charges against the Plaintiff were dropped in their entirety by the District Attorney and the matter was dismissed.

100. That the aforesaid acts and/or omissions of Defendants were committed by employees of the City of New York, within the course of their employment for the City of New York.

101. That as a result of the foregoing, Plaintiff was injured.

102. That the foregoing was caused by the recklessness, carelessness, negligence and wrongful intentional conduct of Defendants, their agents, servants and/or employees, including various Police Officers from the 120th Precinct (and/or other precincts); in unjustly and wrongfully arresting and detaining the plaintiff; in exhibiting a depraved indifference to Plaintiff's life, health, safety, welfare and well-being; in engaging in activities that were dangerous and harmful to the Plaintiffs; in wrongfully restraining and imprisoning the Plaintiff without probable cause, a

warrant, justification and/or legal basis to do so which was evidenced by the fact that all charges against the plaintiff were dismissed, and as evidence clearly shows; in failing to follow proper police department guidelines, rules and regulations; in violating the applicable rules in the Patrol Guide Book; in violating Plaintiffs' civil; in failing to perform sufficient and adequate investigation so as to clear plaintiff's name and dismiss the charges against him in a speedy manner; in improperly detaining and incarcerating the plaintiff for an excessive amount of time; in failing to avoid and/or prevent the occurrence herein; in failing to supervise, properly supervise and adequately supervise the aforesaid Police Officers and/or other personnel involved in this incident; in failing to provide sufficient and adequate training to the Police Officers involved herein; in violating the applicable laws, rules, statutes, ordinances and regulations in such cases made and provided; and they were otherwise careless, reckless and negligent and failed to exercise reasonable care and prudence under the circumstances.

103. That as a result of said failures, malice, malfeasance and false statements, Mr. Halifax was detained/arrested for approximately 12 hours in police custody, between October 23, 2018, at approximately 2:50 P.M. and October 24, 2018 at approximately 3:00 A.M.; Mr. Halifax was further required to attend 8 court conferences; Mr. Halifax's probationary period with the New York City Department of Sanitation was extended for three months; Mr. Halifax underwent significant psychological trauma and emotional distress as a result of his unlawful arrest as Mr. Halifax was out of jail on probation at the time of the occurrence, and the charges he was facing in this incident would have constituted a violation of his probation. As a result, Mr. Halifax was facing wrongfully facing an additional five (5) years of imprisonment if the unlawful charges against him would have been proven; Mr. Halifax was employed by the New York City Department of Sanitation as a probationary worker and risked losing his job as a result of the

charges. Mr. Halifax even risked losing his job just by attending the 8 court appearances that he was required to attend; The subject prosecution threatened to cause Mr. Halifax to lose his ability to ever succeed as a result of being penalized despite his good behavior, and to set him back significantly despite working hard to be a law abiding citizen; Plaintiffs Darryl Halifax and Tatyana Guerra sustained: personal injuries; pain and suffering; embarrassment; deflation of character; psychological trauma; loss of enjoyment of life; loss of freedom; lost earnings; loss of money paid in attorneys' fees in the underlying criminal action; emotional distress; irretrievable loss of reputation; attorneys fees in bringing the instant action; fear of personal injury; fear for personal safety; depression, anxiety and worry; fear and worry regarding impending prosecution, litigation and incarceration; Plaintiffs Darryl Halifax and Tatyana Guerra have sustained and will continue to suffer from psychological trauma, loss of enjoyment of life, plaintiff has incurred loss of earnings; loss of services, loss of consortium, plaintiffs have incurred property damage, the amount of which is presently unknown, plaintiff suffered a violation of his civil rights and false restraint and imprisonment, all to his damage in such sums as a jury finds reasonable, fair and just.

104. That by reason of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction.

105. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

106. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have

any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE ARREST & FALSE IMPRISONMENT**

107. Plaintiff repeats, reiterates and realleges each and every allegation contained and set forth above numbered 1-106 with the same force and effect as though more fully set forth at length herein.

108. That there was never probable cause to detain or arrest Mr. Halifax.

109. Defendant THE CITY OF NEW YORK intentionally and without the right to do so arrested and took Plaintiff into custody.

110. Defendant THE CITY OF NEW YORK intended to confine plaintiff.

111. Defendant JAN FOLVARSKY intentionally and without the right to do so arrested and took Plaintiff into custody.

112. Defendant JAN FOLVARSKY intended to confine plaintiff.

113. The plaintiff was conscious of the confinement.

114. Plaintiff was aware of the confinement.

115. Plaintiff did not consent to the confinement.

116. Defendant THE CITY OF NEW YORK did not have reasonable cause to arrest the Plaintiff.

117. Defendant THE CITY OF NEW YORK did not have reasonable cause to confine the Plaintiff.

118. Defendant THE CITY OF NEW YORK did not have a privilege to arrest the Plaintiff.

119. Defendant JAN FOLVARSKY did not have reasonable cause to arrest the Plaintiff.

120. Defendant JAN FOLVARSKY did not have reasonable cause to confine the Plaintiff.

121. Defendant JAN FOLVARKSY did not have a privilege to arrest the Plaintiff.

122. The confinement was not otherwise privileged.

123. A reasonably prudent person would not believe that both a crime had been committed and that Plaintiff was the person who had committed it.

124. That as a result of the foregoing, Plaintiff was injured.

125. That the foregoing was caused by the recklessness, carelessness, negligence and wrongful intentional conduct of Defendants, their agents, servants and/or employees, including various Police Officers from the 120th Precinct (and/or other precincts); in unjustly and wrongfully arresting and detaining the plaintiff; in exhibiting a depraved indifference to Plaintiff's life, health, safety, welfare and well-being; in engaging in activities that were dangerous and harmful to the Plaintiffs; in wrongfully restraining and imprisoning the Plaintiff without probable cause, a warrant, justification and/or legal basis to do so which was evidenced by the fact that all charges against the plaintiff were dismissed, and as evidence clearly shows; in failing to follow proper police department guidelines, rules and regulations; in violating the applicable rules in the Patrol Guide Book; in violating Plaintiffs' civil; in failing to perform sufficient and adequate investigation so as to clear plaintiff's name and dismiss the charges against him in a speedy manner; in improperly detaining and incarcerating the plaintiff for an excessive amount of time; in failing to avoid and/or prevent the occurrence herein; in failing to supervise, properly supervise and adequately supervise the aforesaid Police Officers and/or other personnel involved in this incident; in failing to provide sufficient and adequate training to the Police Officers involved herein; in violating the applicable laws, rules, statutes, ordinances and regulations in such cases made and provided; and they were otherwise careless, reckless and negligent and failed to exercise reasonable care and prudence under the circumstances.

126. That as a result of said failures, malice, malfeasance and false statements, Mr. Halifax was detained/arrested for approximately 12 hours in police custody, between October 23, 2018, at approximately 2:50 P.M. and October 24, 2018 at approximately 3:00 A.M.; Mr. Halifax was further required to attend 8 court conferences; Mr. Halifax's probationary period with the New York City Department of Sanitation was extended for three months; Mr. Halifax underwent significant psychological trauma and emotional distress as a result of his unlawful arrest as Mr. Halifax was out of jail on probation at the time of the occurrence, and the charges he was facing in this incident would have constituted a violation of his probation. As a result, Mr. Halifax was facing wrongfully facing an additional five (5) years of imprisonment if the unlawful charges against him would have been proven; Mr. Halifax was employed by the New York City Department of Sanitation as a probationary worker and risked losing his job as a result of the charges. Mr. Halifax even risked losing his job just by attending the 8 court appearances that he was required to attend; The subject prosecution threatened to cause Mr. Halifax to lose his ability to ever succeed as a result of being penalized despite his good behavior, and to set him back significantly despite working hard to be a law abiding citizen; Plaintiffs Darryl Halifax and Tatyana Guerra sustained: personal injuries; pain and suffering; embarrassment; deflation of character; psychological trauma; loss of enjoyment of life; loss of freedom; lost earnings; loss of money paid in attorneys' fees in the underlying criminal action; emotional distress; irretrievable loss of reputation; attorneys fees in bringing the instant action; fear of personal injury; fear for personal safety; depression, anxiety and worry; fear and worry regarding impending prosecution, litigation and incarceration; Plaintiffs Darryl Halifax and Tatyana Guerra have sustained and will continue to suffer from psychological trauma, loss of enjoyment of life, plaintiff has incurred loss of earnings; loss of services, loss of consortium, plaintiffs have incurred property damage,

the amount of which is presently unknown, plaintiff suffered a violation of his civil rights and false restraint and imprisonment, all to his damage in such sums as a jury finds reasonable, fair and just.

127. That by reason of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction.

128. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

129. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
NEGLIGENT HIRING, TRAINING, SUPERVISION AND RETENTION**

130. Plaintiff repeats, reiterates and realleges each and every allegation contained and set forth above numbered 1-129 with the same force and effect as though more fully set forth at length herein.

131. That by reason of the negligent hiring, training, supervision and retention of Defendant's employees, the plaintiff sustained unlawful and continuous incarceration and imprisonment, malicious prosecution, deprivation of his liberty and freedom; and personal injuries.

132. That as a result of the foregoing, Plaintiff was injured.

133. That the amount of damages sought herein exceeds the jurisdictional limits of any and all lower courts which would otherwise have jurisdiction.

134. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

135. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

AS AND FOR A FOURTH CAUSE OF ACTION FOR ABUSE OF PROCESS

136. Plaintiff repeats, reiterates and realleges each and every allegation contained and set forth in the above numbered 1-135 with the same force and effect as though more fully set forth at length herein.

137. Defendants used the above mentioned criminal prosecution for a purpose for which it was not legally intended.

138. Defendants acted without excuse or justification.

139. Defendants acted for the purpose of causing harm.

140. That as a result of the foregoing, Plaintiff was injured.

141. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

142. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

143. That the amount of damages sought herein exceeds the jurisdictional limits of any and all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION FOR NEGLIGENCE

144. Plaintiffs repeat, reiterate and reallege each and every allegation in complaint numbered 1-143 inclusive with the same force and effect as though more fully set forth herein.

145. That Defendants had a duty not to act in a reasonably prudent manner.

146. That Defendants breached this duty.

147. That as a result of said breach, plaintiff was harmed.

148. That the foregoing was caused by the recklessness, carelessness, negligence and wrongful intentional conduct of Defendants, their agents, servants and/or employees, including various Police Officers from the 120th Precinct (and/or other precincts); in unjustly and wrongfully arresting and detaining the plaintiff; in exhibiting a depraved indifference to Plaintiff's life, health, safety, welfare and well-being; in engaging in activities that were dangerous and harmful to the Plaintiffs; in wrongfully restraining and imprisoning the Plaintiff without probable cause, a warrant, justification and/or legal basis to do so which was evidenced by the fact that all charges against the plaintiff were dismissed, and as evidence clearly shows; in failing to follow proper police department guidelines, rules and regulations; in violating the applicable rules in the Patrol Guide Book; in violating Plaintiffs' civil; in failing to perform sufficient and adequate investigation so as to clear plaintiff's name and dismiss the charges against him in a speedy manner; in improperly detaining and incarcerating the plaintiff for an excessive amount of time; in failing to avoid and/or prevent the occurrence herein; in failing to supervise, properly supervise and adequately supervise the aforesaid Police Officers and/or other personnel involved in this incident; in failing to provide sufficient and adequate training to the Police Officers

involved herein; in violating the applicable laws, rules, statutes, ordinances and regulations in such cases made and provided; and they were otherwise careless, reckless and negligent and failed to exercise reasonable care and prudence under the circumstances.

149. That as a result of said failures, malice, malfeasance and false statements, Mr. Halifax was detained/arrested for approximately 12 hours in police custody, between October 23, 2018, at approximately 2:50 P.M. and October 24, 2018 at approximately 3:00 A.M.; Mr. Halifax was further required to attend 8 court conferences; Mr. Halifax's probationary period with the New York City Department of Sanitation was extended for three months; Mr. Halifax underwent significant psychological trauma and emotional distress as a result of his unlawful arrest as Mr. Halifax was out of jail on probation at the time of the occurrence, and the charges he was facing in this incident would have constituted a violation of his probation. As a result, Mr. Halifax was facing wrongfully facing an additional five (5) years of imprisonment if the unlawful charges against him would have been proven; Mr. Halifax was employed by the New York City Department of Sanitation as a probationary worker and risked losing his job as a result of the charges. Mr. Halifax even risked losing his job just by attending the 8 court appearances that he was required to attend; The subject prosecution threatened to cause Mr. Halifax to lose his ability to ever succeed as a result of being penalized despite his good behavior, and to set him back significantly despite working hard to be a law abiding citizen; Plaintiffs Darryl Halifax and Tatyana Guerra sustained: personal injuries; pain and suffering; embarrassment; deflation of character; psychological trauma; loss of enjoyment of life; loss of freedom; lost earnings; loss of money paid in attorneys' fees in the underlying criminal action; emotional distress; irretrievable loss of reputation; attorneys fees in bringing the instant action; fear of personal injury; fear for personal safety; depression, anxiety and worry; fear and worry regarding impending prosecution,

litigation and incarceration; Plaintiffs Darryl Halifax and Tatyana Guerra have sustained and will continue to suffer from psychological trauma, loss of enjoyment of life, plaintiff has incurred loss of earnings; loss of services, loss of consortium, plaintiffs have incurred property damage, the amount of which is presently unknown, plaintiff suffered a violation of his civil rights and false restraint and imprisonment, all to his damage in such sums as a jury finds reasonable, fair and just.

150. That by reason of the foregoing, Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction.

151. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

152. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF TATYANA GUERRA

153. Plaintiffs repeat, reiterate and reallege each and every allegation in complaint numbered 1-152 above inclusive with the same force and effect as though more fully set forth herein.

154. That at all times hereinafter mentioned, plaintiff TAYNANA GUERRA was the wife and/or domestic partner of plaintiff DARRYL HALIFAX.

155. That as a result of the foregoing occurrence, plaintiff TAYNANA GUERRA has been deprived of the services, comfort and care of DARRYL HALIFAX, and has had to expend money and time to take care of him, and has lost money while being charged with his care, and

has been caused to sustain damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this matter.

156. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

157. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

158. By virtue of the foregoing occurrence, plaintiff TAYNANA GUERRA has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this matter.

WHEREFORE, plaintiff demands judgment against each of the defendants on each of the above six (6) Causes of Action, and such sum as a jury may find fair, reasonable and just, together with the costs, interest and disbursements of this action.

Dated: New York, New York
December 5, 2019

RHEINGOLD GIUFFRA RUFFO & PLOTKIN LLP
Attorneys for Plaintiffs
DARRYL HALIFAX and TATYANA GUERRA



By: Jeremy A. Hellman, Esq.
551 Fifth Avenue, 29th Floor
New York, NY 10176
Tel: (212) 684-1880
Fax: (212) 689-8156
jhellman@rheingoldlaw.com

VERIFICATION

JEREMY A. HELLMAN, an attorney duly admitted to practice law before the Courts of the State of New York, hereby affirms under penalties of perjury as follows:

That he is an member of the law firm of RHEINGOLD, GIUFFRA, RUFFO & PLOTKIN LLP, attorneys for the plaintiff in the within action. That he has read the foregoing Summons and Verified Complaint and know the contents thereof and the same is true to his own knowledge, except as to those matters he believes it to be true. That the reason this verification is made by affirmant and not by said plaintiff is that plaintiff does not reside in the county wherein your affirmant's office is located.

Affirmant further states that the source of his information and the grounds of his beliefs as to all matters made on behalf of the plaintiffs are based upon that information contained in your affirmant's file, and conversations had with the Plaintiff.

Dated: December 5, 2019
New York, NY



By: Jeremy A. Hellman, Esq.

CERTIFICATION

Pursuant to 22 NYCRR § 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in this document are not frivolous;

Dated: December 5, 2019
New York, NY



By: Jeremy A. Hellman, Esq.
